

1 STATE OF OKLAHOMA

2 1st Session of the 60th Legislature (2025)

3 HOUSE BILL 1728

By: Moore

6 AS INTRODUCED

7 An Act relating to invasive salt cedars; creating the
8 Salt Cedar Eradication Act; defining terms; creating
9 certain program; directing the Oklahoma Department of
10 Agriculture, Food, and Forestry to oversee and
11 implement the program along with cooperation from
12 certain state agencies; authorizing the Oklahoma
13 Department of Agriculture, Food, and Forestry to
14 utilize certain funds; stating purpose of program;
15 listing certain duties; providing for penalties for
16 noncompliance with program; authorizing the
17 promulgation of rules and procedures; requiring
18 certain annual report; creating the Salt Cedar
19 Eradication Revolving Fund; providing for content of
20 fund; providing for deposits and expenditures;
21 providing for codification; and declaring an
22 emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 3-8-201 of Title 27A, unless
21 there is created a duplication in numbering, reads as follows:

22 This act shall be known and may be cited as the "Salt Cedar
23 Eradication Act".
24

1 SECTION 2. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 3-8-202 of Title 27A, unless
3 there is created a duplication in numbering, reads as follows:

4 A. As used in this act:

5 1. "Eligible Landowners" means private, tribal, and public
6 landowners in Oklahoma counties within the Upper Red River Basin;

7 2. "Eradication" means the removal or substantial reduction of
8 salt cedar populations to a level where they no longer pose a
9 significant threat; and

10 3. "Salt Cedar" means all species within the genus Tamarix
11 identified as invasive or noxious in Oklahoma.

12 B. There is hereby created a program to control and eradicate
13 invasive salt cedar species in Oklahoma counties within the Upper
14 Red River Basin and is to be administered by the Oklahoma Department
15 of Agriculture, Food, and Forestry (ODAFF), in collaboration with
16 the Oklahoma Conservation Commission (OCC), Oklahoma Water Resources
17 Board (OWRB). To accomplish the goals listed in this section, the
18 Department is authorized to use the funds available in the Salt
19 Cedar Eradication Program Revolving Fund established in Section 3 of
20 this act. The purpose of the program is to manage and eradicate
21 invasive salt cedar species in Oklahoma counties within the Upper
22 Red River Basin, to enhance water resources, restore native
23 ecosystems, and protect agricultural productivity.

1 C. The Oklahoma Department of Agriculture, Food, and Forestry
2 (ODAFF), in collaboration with the Oklahoma Conservation Commission
3 (OCC), Oklahoma Water Resources Board (OWRB) shall establish and
4 oversee the Salt Cedar Eradication Program which shall include:

5 1. Conducting surveys to identify and map salt cedar
6 infestations in Oklahoma counties within the Upper Red River Basin;

7 2. Developing and implementing science-based eradication
8 strategies, including mechanical removal, chemical treatments, and
9 biological controls;

10 3. Provide technical and financial assistance to eligible
11 landowners; and

12 4. Monitor and evaluate the effectiveness of eradication
13 efforts.

14 D. Landowners in identified high-priority areas may be required
15 to participate in eradication programs or face penalties for
16 noncompliance.

17 E. The Oklahoma Department of Agriculture, Food, and Forestry,
18 shall establish guidelines for participation, including cost-sharing
19 arrangements and reimbursement opportunities.

20 F. The Oklahoma Department of Agriculture, Food, and Forestry
21 is authorized to promulgate any rules and procedures to effectuate
22 the provisions of this act, which shall include setting penalties
23 for landowners for noncompliance.

1 G. The Oklahoma Department of Agriculture, Food, and Forestry
2 shall submit an annual report to the Governor, Speaker of the
3 Oklahoma House of Representatives, to the President Pro Tempore of
4 the Oklahoma State Senate, and to the chairs of the appropriation
5 chairs of the Oklahoma House of Representatives and the Oklahoma
6 State Senate outlining the following:

- 7 1. Progress of eradication efforts;
- 8 2. Expenditures and funding needs; and
- 9 3. Recommendations for continued salt cedar management.

10 SECTION 3. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 3-8-203 of Title 27A, unless
12 there is created a duplication in numbering, reads as follows:

13 There is hereby created in the State Treasury a revolving fund
14 for the Oklahoma Department of Agriculture, Food, and Forestry
15 (ODAFF) to be designated the "Salt Cedar Eradication Revolving
16 Fund". The fund shall be a continuing fund, not subject to fiscal
17 year limitations, and shall consist of all monies received by the
18 Oklahoma Department of Agriculture, Food, and Forestry from
19 appropriations, federal grants or funds, municipal contributions,
20 private contributions, and any other sources, including interest
21 earned from the income in the fund, that are designated for deposit
22 to such fund or designated for duties associated with removal and
23 eradication of salt cedars in Beckham and Jackson counties. All
24 monies accruing to the credit of said fund are hereby appropriated

1 and may be budgeted and expended by the Oklahoma Department of
2 Agriculture, Food, and Forestry to perform the duties imposed on the
3 Department by law. Expenditures from said fund shall be made upon
4 warrants issued by the State Treasurer against claims filed as
5 prescribed by law with the Director of the Office of Management and
6 Enterprise Services for approval and payment.

7 SECTION 4. This act shall become effective July 1, 2025.

8 SECTION 5. It being immediately necessary for the preservation
9 of the public peace, health or safety, an emergency is hereby
10 declared to exist, by reason whereof this act shall take effect and
11 be in full force from and after its passage and approval.

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